REQUEST TO USE THE RULES IN FORCE WHEN MY INCOME WAS EARNED

For AISH and ADAP clients reassessed using income from before July 2, 2026

ADSB-PJIR-001 v1.0 • Released November 2026

WHO THIS FORM IS FOR

Use this letter if you are on AISH or ADAP, you had job or self-employment income before July 2, 2026, and your local AISH or ADAP office has done one or more of these:

- told you that you were **overpaid for months before July 2, 2026**, because your income was counted under the new, smaller exemption;
- set your payment from July 2, 2026 onward using **income you earned before July 2** (for example your 2025 income) with the new exemption;
- started **taking money off your payments** for either of those reasons.

WHAT CHANGED ON JULY 2, 2026

"Exempt" income is income they don't count against your payment. Until July 1, 2026, the old AISH General Regulation (Alberta Regulation 91/2007) set the job-income exemption. For a single person, the first **$1,072** a month was fully exempt, and half of the income between $1,072 and $2,009 was also exempt. With a partner or dependent child, the first **$2,612** was fully exempt, plus half of the income between $2,612 and $3,349.

On July 2, 2026, Alberta Regulation 96/2026 replaced it. The new regulation doesn't print the amounts. It says they are set by a Minister's order (Schedule 1, section 4(2)). The policy manual (July 24, 2026) lists the fully exempt amounts as **$350** for AISH (nothing exempt above that), **$700** for ADAP, **$1,100** for ADAP with dependents and **$1,500** for a cohabiting partner (ADAP and partner income above those amounts is partly exempt).

WHY THE OLD RULES STILL MATTER

Alberta's Interpretation Act says that when a law is repealed, the repeal does not "affect the previous operation of the enactment so repealed" or "any right, privilege, obligation or liability acquired, accrued, accruing or incurred under the enactment so repealed" (section 35(1)(b) and (c)). In plain words: **the months before July 2, 2026 are governed by the rules that were in force in those months.**

WHAT THIS FORM DOES, AND WHAT IT DOES NOT DO

Months before July 2, 2026: it asks the office to use the old exemption, cancel any overpayment that exists only because the new exemption was used, and pay back anything already taken.

Months from July 2, 2026: the new regulation lets the office set your payment from the income in your last reporting period (Schedule 1, section 6(2)), so using last year's income is allowed. This letter asks the office to show the authority for applying the new exemption to income earned before July 2, and to base your payment on your current income by switching you to monthly reporting.

This form is a community tool. It is not legal advice and it can't promise an outcome.

TO: The Director, Assured Income for the Severely Handicapped (AISH) and Alberta Disability Assistance Program (ADAP)
RE: Income earned before July 2, 2026: request to apply the rules in force when it was earned

Date of Letter	AISH / ADAP File No.	Office This Is Sent To

My Program (check one)

☐ AISH ☐ ADAP

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PRE-JULY INCOME RULES REQUEST (continued)

The letter and the rules it relies on

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Dear Director,

I am a client of the program checked on page 1. I had employment or self-employment income before July 2, 2026. My benefit has been reviewed using that income, and I believe the employment income exemption in force after July 2, 2026 has been applied to income earned, and to months that passed, while the former regulation was in force.

THE RULES

The former regulation, Alberta Regulation 91/2007, Schedule 1.1, for a client with no cohabiting partner or dependent child, exempted employment and self-employment income as:

> "(A) 100% of the income up to $1072, plus (B) 50% of the income in excess of $1072 up to $2009"

and for a client with a cohabiting partner or dependent child:

> "(A) 100% of the income up to $2612, plus (B) 50% of the income in excess of $2612 up to $3349."

Alberta Regulation 96/2026 section 22 repealed that regulation. Alberta Regulation 96/2026 came into force on July 2, 2026.

The current regulation, Alberta Regulation 96/2026, Schedule 1, section 4(1), says a director "must deduct, when determining income, employment and self-employment income amounts in accordance with an order made under subsection (2)", and section 4(2) says "The Minister may, by order, determine" those amounts.

The Interpretation Act, RSA 2000 c I-8, section 35(1), says that when an enactment is repealed, the repeal does not:

> "(b) affect the previous operation of the enactment so repealed or anything done or suffered under it, (c) affect any right, privilege, obligation or liability acquired, accrued, accruing or incurred under the enactment so repealed"

THE FACTS (check all that apply)

- ☐ I was told I was **overpaid for months before July 2, 2026**.
- ☐ My payment from July 2, 2026 was set using **income earned before July 2, 2026**.
- ☐ Money is being **taken off my payments** because of this.
- ☐ My job income **now** is different from the income they used.

Date of the letter or decision I received

Months affected (for example: July 2025 to June 2026)

Amount they say I owe ($)

Amount taken off each payment ($)

Monthly job income they used ($)

My monthly job income now ($)

Reporting I am on now (monthly / annual / not sure)

Anything else the office should know (optional)

continued on page 3

PRE-JULY INCOME RULES REQUEST (continued)

What I am asking for, and signature

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I AM REQUESTING

1. For every month before July 2, 2026: that my benefit be calculated using the employment income exemption in Alberta Regulation 91/2007, Schedule 1.1, which was the law in force in those months.
2. That any overpayment that exists only because the post-July 2, 2026 exemption was applied to those months be cancelled, and that any amount already deducted for it be paid back to me.
3. A written calculation, month by month, showing the income used, the period that income was earned in, the exemption applied, and the law relied on. If a Minister's order under Schedule 1, section 4(2) of Alberta Regulation 96/2026 was used, its date and a copy of it.
4. For months from July 2, 2026: the authority relied on to apply the post-July 2 exemption to income I earned before July 2, 2026.
5. That my income reporting be changed to monthly, so my benefit is based on my current income. Alberta Regulation 96/2026, Schedule 1, section 6(2)(a) allows income reported monthly to be based on the month before, and the policy manual lists a client's employment income as a reason for monthly reporting.
6. That any deduction for this amount be put on hold while this request is reviewed, and written notice of the amount and the authority before any deduction is made under section 20(2) of Alberta Regulation 96/2026.
7. A written decision on this request, so I can appeal it under section 10.1 of the AISH Act if I need to.
8. A reply to this letter in writing, sent to the contact details below.

I am keeping a copy of this letter and proof of the date it was sent. Thank you for your attention to this.

Sincerely,

Signature (typed or signed)

Date

Printed Name

AISH / ADAP File No.

Contact Email

Contact Phone

Mailing Address

If someone is signing for the client: their name and role (trustee, financial administrator, attorney)

CC: My MLA, and Marie Renaud, MLA for St. Albert (St.Albert@assembly.ab.ca)

My MLA's name and email

PRE-JULY INCOME RULES REQUEST: HOW TO SEND IT

Keep this page. You don't need to send it.

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HOW TO SEND IT

1. Fill in page 1, the facts on page 2, and sign page 3.
2. Email pages 1 to 3 to your local AISH or ADAP office. Put your **full name and file number in the subject line**. Email is best because it shows the date. Office contacts are at alberta.ca/contact-aish.
3. CC your own MLA and Marie Renaud, MLA for St. Albert, at **St.Albert@assembly.ab.ca**.
4. Attach the letter or statement that shows the overpayment or the new amount, if you have one.
5. Keep a copy of everything and proof of the date you sent it.

THE 30-DAY APPEAL CLOCK: READ THIS

If you got a **written decision** saying you were overpaid or setting a new amount, you have **30 days from the day you received it** to appeal (AISH Act section 10.1). The repayment notice is supposed to tell you about your right to appeal (section 7(3)(c)). **Send this letter AND file an appeal inside the 30 days.** Don't wait for a reply to this letter. Use the Notice of Appeal (AAS13358). Our fillable version is on the website under AISH/ADAP fillable forms.

If more than 30 days have passed, the Minister can still extend the time to appeal if there are grounds and "a reasonable explanation for the delay" (section 10.1(3)). Explain the delay in your appeal.

AFTER YOU SEND IT

1. Write down the date you sent it and who you sent it to.
2. If you get a reply, keep it. If it gives a calculation, check which exemption was used for each month.
3. If they say the overpayment stands, you can also ask in writing for it to be waived because of your circumstances (AISH Act section 7(4)). That decision can't be appealed, but you can still ask for it.
4. Some decisions can't be appealed, like a decision to deduct a repayment from your payments, or to spread income over a longer period. The decision that you were overpaid is not on that list.
5. Keep reporting all your income, every time. The exemptions don't apply if income isn't reported on time.

WHAT TO KNOW BEFORE YOU SEND IT

The strongest part of this letter is about months **before** July 2, 2026. Those months were governed by the old regulation. For months **after** July 2, the new regulation lets the office use last year's income to set your payment, so the letter asks for the authority and for monthly reporting on your current income. If your income has gone down, monthly reporting may be the fastest fix.

Sources: Alberta Regulation 91/2007 (AISH General Regulation), Schedule 1.1, archived copy repealed July 2, 2026. Alberta Regulation 96/2026, sections 20 and 22 and Schedule 1, sections 4 and 6, King's Printer, live copy compared November 11, 2026. AISH Act (RSA 2000 c A-45.1), sections 7 and 10.1, current as of July 2, 2026. Applications and Appeals (Ministerial) Regulation (AR 89/2007), section 6. Interpretation Act (RSA 2000 c I-8), section 35. Disability Income Assistance policy manual (July 24, 2026), Income Exemptions and Income Reporting. This is a community tool, not legal advice.